

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 2, 2026
8:30 AM/1:30 PM

19. KIM VANACORE V. DEREK VANACORE

25FL0413

Respondent filed a Request for Order (RFO) on March 23, 2026, seeking bifurcation of marital status. Petitioner was personally served on March 23, 2026.

Petitioner has not filed a Responsive Declaration.

California Rules of Court, rule 5.390(a) states that on noticed motion of a party, using form FL-300, "Request for Order," "the stipulation of the parties, case management, or the court's own motion, the court may bifurcate one or more issues to be tried separately before other issues are tried."

Family Code section 2337 provides that "[i]n a proceeding for dissolution of marriage, the court, upon noticed motion, may sever and grant an early and separate trial on the issue of the dissolution of the status of the marriage apart from other issues." (Fam. Code, § 2337, subd. (a).) The trial court may separately try the issue of termination of marriage if doing so "is likely to simplify the determination of the other issues." (Cal. Rules of Court, rule 5.390(b)(7).)

The minimum statutory requirements for bifurcating and terminating marital status are that six months must have passed since the date of service of the summons and petition (§ 2339, subd. (a)), and that the party seeking termination of marital status must have served a preliminary declaration of disclosure or obtained a written agreement to defer service to a later date (§ 2337, subd. (b)). Both requirements were met here.

Parties are ordered to appear for the hearing.

TENTATIVE RULING #19: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.